

Subletting and Occupancy Policy

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1. Purpose and Scope

DataCompany Housing Management must at all times know who occupies its properties to ensure safety obligations are met, insurance coverage is valid, and all occupants are subject to the terms of a valid tenancy framework. This policy governs the rules around subletting, taking in lodgers, adding occupants and extended visits. It applies to all DataCompany tenancies.

2. Core Principle: No Unauthorised Subletting

No tenant may sublet the whole or any part of a DataCompany property without first obtaining written consent from DataCompany. Subletting includes: renting out a room to a paying lodger, listing the property on any short-term rental platform (including Airbnb or similar services), granting occupancy rights to another person, or entering into any arrangement whereby a third party pays for the right to occupy the property. Breach of this clause is a serious tenancy violation that may result in immediate termination of the tenancy.

3. Adding Occupants to a Tenancy

3.1 Permitted Additional Occupants

The following categories of person may take up residence without requiring formal subletting consent, though DataCompany must be notified in writing within 14 days:

- A spouse, civil partner or long-term partner of the named tenant.
- A dependent child under the age of 18 of the named tenant.
- An elderly or dependent parent of the named tenant, provided occupancy limits are not exceeded.

3.2 Occupancy Limits

Property Size	Maximum Permitted Occupants	Notes
Studio / Bedsit	2 adults	
1-bedroom apartment	2 adults + 1 child under 10	
2-bedroom apartment / house	4 adults, or 2 adults + 2 children	
3-bedroom house	6 persons maximum	Subject to room sizes
4-bedroom house or larger	8 persons maximum	Subject to room sizes; DataCompany approval required

4. Applying for Subletting Consent

Tenants wishing to sublet must submit a written application to tenancy@datacompany.co.zw or via the tenant portal. The application must include: full name and ID details of the proposed occupant, proposed start date and duration, financial arrangements (what the subtenant will pay), and confirmation that the tenant will remain primarily responsible for the property and all tenancy obligations.

DataCompany will respond within 20 working days. Consent, if granted, will specify conditions including maximum duration, a requirement for a subtenancy agreement and the retention of the head tenant's liability. Consent is not transferable and must be renewed if circumstances change.

5. Short-Term Rental Platforms

The use of any short-term holiday letting platform, including but not limited to Airbnb, HomeAway, Booking.com and similar services, is strictly prohibited without written consent. DataCompany will not grant consent for short-term commercial letting of managed properties in residential zones. Any evidence of such activity will result in immediate tenancy enforcement action.

6. Extended Visits

Guests staying at a DataCompany property for a continuous period of more than 28 days must be declared to DataCompany in writing. Extended visits of up to 90 days will generally be accepted provided the occupancy limit is not exceeded. Stays beyond 90 days may require the guest to be formally added to the tenancy as a named occupant or for a formal subletting application to be made.

7. Consequences of Unauthorised Subletting

- Formal written warning and requirement to end any unauthorised arrangement immediately.
- The unauthorised occupant may be required to vacate the property within 7 days.
- The tenant will be liable for any costs incurred by DataCompany in investigating or resolving the breach.
- Persistent or serious violations will result in eviction proceedings under DC-POL-010.
- DataCompany reserves the right to void any insurance claim arising from a period of unauthorised subletting.